

**El Paso County
Delia Briones
County Clerk**

Instrument Number: 00000000063

Sa.Medina

Recorded On: 4/7/2026 1:49:30 PM

Number of Pages: 1

Examined and Charged as Follows:

Total Recording: 12.00

*****THIS PAGE IS PART OF THE INSTRUMENT*****

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY
because of color or race is invalid and unenforceable under federal law.

File Information

Document Number 00000000063
Receipt Number 1972351
Recorded Date/Time: 4/7/2026 1:49:30 PM
Station: CCH01-CCK100



State of Texas
COUNTY OF EL PASO

I hereby certify that this instrument was FILED in the File Number sequence on the date/time printed hereon,
and was duly RECORDED in the Official Record of El Paso County, Texas.

Delia Briones
County Clerk
El Paso County, TX

NOTICE OF TRUSTEE'S SALE

STATE OF TEXAS }
 }
COUNTY OF EL PASO }

KNOW ALL MEN BY THESE PRESENTS

Whereas, by **DEED OF TRUST, SECURITY AGREEMENT, ASSIGNMENT OF RENTS AND FINANCING STATEMENT** (herein "Deed of Trust") which Deed of Trust is recorded under Clerk's File No. **20220114372**, of the Real Property Records of El Paso County, Texas, dated **DECEMBER 7, 2022**, **GILBERT GUTIERREZ AND ANA LUISA GUTIERREZ A/K/A ANA L. GUTIERREZ A/K/A ANA GUTIERREZ, HUSBAND AND WIFE**, conveyed to Steven E. Anderson, Trustee, At 1533 N. Lee Trevino, Ste. 205, El Paso, Texas 79936, for the benefit of **EQUITY TRUST COMPANY CUST. FBO CHARLES J. HORAK, JR., IRA** or **Holder of the Note**, certain real property situated in El Paso County, Texas, to wit:

Lot 18, Block 2, RIVERSIDE ADDITION, an Addition to the City of El Paso, El Paso County, Texas, according to the Plat thereof recorded in Volume 12, Page 58, Plat Records of El Paso County, Texas, municipally known as 637 Francis Street, El Paso, Texas 79905 (**herein the "Property"**).

to secure payment of one certain **NOTE** therein described in the original principal amount of **\$146,000.00**, executed by **GILBERT GUTIERREZ AND ANA LUISA GUTIERREZ A/K/A ANA L. GUTIERREZ A/K/A ANA GUTIERREZ, HUSBAND AND WIFE**, and made payable to **EQUITY TRUST COMPANY CUST. FBO CHARLES J. HORAK, JR., IRA** (herein the "Note");

Whereas, default has occurred under the terms of the Note secured by the Deed of Trust, and the indebtedness evidenced herein is now wholly due, **EQUITY TRUST COMPANY CUST. FBO CHARLES J. HORAK, JR., IRA**, the owners and holders of said indebtedness, and they have requested the undersigned to sell the Property to satisfy same.

NOW THEREFORE, NOTICE IS HEREBY GIVEN that on **TUESDAY, MAY 5, 2026**, between the hours of 1:00 o'clock p.m. and 4:00 o'clock p.m., I will sell, for cash, the Property in El Paso County in the area designated by the Commissioners Court at the El Paso County Coliseum, 4100 E Paisano Dr, El Paso, TX 79905, pursuant to Section 51.002 of the Texas Property Code, as the place where foreclosure sales are to take place. If no place is designated by the Commissioners' Court, sale will be conducted at the place where the Notice of Trustee's Sale was posted to the highest bidder or bidders for cash or cash equivalent. The earliest time the sale will begin is 1:00 o'clock p.m., or within three hours after that time.

Therefore, notice is given that on and at the date, time, and place for the foreclosure sale described above, Trustee will sell the Property in accordance with the terms of sale described above, the Deed of Trust, and applicable Texas law.

If **EQUITY TRUST COMPANY CUST. FBO CHARLES J. HORAK, JR., IRA**, passes the foreclosure sale, notice of the date of any rescheduled foreclosure sale will be reposted and refiled in accordance with the posting and filing requirements of the Deed of Trust and the Texas Property Code.

The foreclosure sale will be expressly subject to any title matters set forth in the Deed of Trust, but prospective bidders are reminded that by law the foreclosure sale will necessarily be made subject to all prior matters of record affecting the Property, if any, to the extent that they remain in force and effect and have not been subordinated to the Deed of Trust. For the avoidance of doubt, the foreclosure sale will not cover any part of the Property that has been released of public record from the lien and/or security interest of the Deed of Trust by **EQUITY TRUST COMPANY CUST. FBO CHARLES J. HORAK, JR., IRA**. Prospective bidders are strongly urged to examine the applicable property records to determine the nature and extent of such matters, if any.

Pursuant to section 51.009 of the Texas Property Code, the Property will be sold "AS IS" without any expressed or implied warranties, except as to the warranties (if any) provided for under the Deed of Trust. Prospective bidders are advised to conduct an independent investigation of the nature and physical condition of the Property.

NOTICE REQUIRED BY SECTION 51.002(i) OF THE PROPERTY CODE

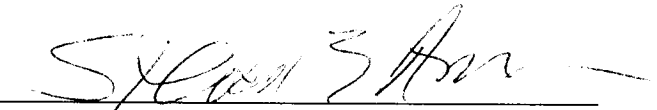
"ASSERT AND PROTECT YOUR RIGHTS AS A MEMBER OF THE ARMED FORCES OF THE UNITED STATES. IF YOU ARE OR YOUR SPOUSE IS SERVING ON ACTIVE MILITARY DUTY, INCLUDING ACTIVE MILITARY DUTY AS A MEMBER OF THE TEXAS NATIONAL GUARD OR THE NATIONAL GUARD OF ANOTHER STATE OR AS A MEMBER OF A RESERVE COMPONENT OF THE ARMED FORCES OF THE UNITED STATES, PLEASE SEND WRITTEN NOTICE OF THE ACTIVE DUTY MILITARY SERVICE TO THE SENDER OF THIS NOTICE IMMEDIATELY."

SENDER'S NAME AND ADDRESS:

ANDERSON, BRIGHT & ASSOCIATES, P.C.
ATTORNEY'S AT LAW
ATTN: STEVEN E. ANDERSON
1533 N. LEE TREVINO, SUITE 205
EL PASO, TX 79936

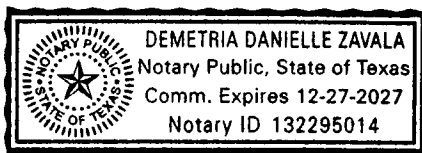
WITNESS MY HAND this 2nd day of APRIL, 2026.

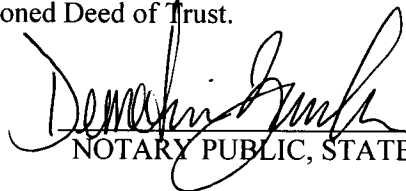
By:


STEVEN E. ANDERSON, TRUSTEE

STATE OF TEXAS }
 }
COUNTY OF EL PASO }

This instrument was acknowledged before me on this 2nd day of APRIL, 2026, by STEVEN E. ANDERSON, TRUSTEE under the above-mentioned Deed of Trust.




NOTARY PUBLIC, STATE OF TEXAS